

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF WEST VIRGINIA**

ELECTRONICALLY FILED Apr 10 2026 U.S. DISTRICT COURT Northern District of WV
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INGENUS PHARMACEUTICALS, LLC

Plaintiff,

v.

MYLAN PHARMACEUTICALS, INC.

Defendant.

C.A. No. **1:26-CV-39 (Kleeh)**

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiff, Ingenus Pharmaceuticals, LLC (“Ingenus” or “Plaintiff”), by its undersigned attorneys, for its complaint against Defendant, Mylan Pharmaceuticals, Inc. (“Mylan” or “Defendant”), herein, alleges as follows:

NATURE OF THE ACTION

1. This is a civil action for patent infringement arising under the patent laws of the United States, Title 35 of the United States Code, arising from Defendant’s submissions of Abbreviated New Drug Applications (“ANDA”) to the Food and Drug Administration (“FDA”) seeking approval to manufacture and sell a generic version of Plaintiff’s Cyclophosphamide Injection, 500 mg/2.5 mL, 1 g/5 mL, 2 g/10 mL (200 mg/mL) prior to the expiration of United States Patent Nos 10,993,952 (“the ’952 patent”) and 12,329,767 (the “’767 patent”) (collectively, “the patents in suit”). A true and correct copy of the ’952 patent is attached hereto as Exhibit A and a true and correct copy of the ’767 patent is attached hereto as Exhibit B.

THE PARTIES

2. Ingenus Pharmaceuticals, LLC (“Ingenus”) is a corporation organized and existing under the laws of the state of Florida having its principal place of business at 4190 Millenia Blvd., Orlando, Florida 32839.

3. On information and belief, Defendant, Mylan Pharmaceuticals, Inc. (“Mylan”), is a corporation organized and existing under the laws of the State of West Virginia, having a principal place of business at 3711 Collins Ferry Road, Morgantown, West Virginia 26505. On information and belief, Mylan Pharmaceuticals Inc. is a wholly owned subsidiary of Viatris Inc. (“Viatris”).

4. On information and belief, Mylan is in the business of, among other things, developing, preparing, manufacturing, selling, marketing, and distributing pharmaceutical products throughout the United States, including in the State of West Virginia and in this Judicial District.

5. Upon information and belief, Mylan derives substantial revenue from the sale of pharmaceutical products in the State of West Virginia and in this Judicial District.

JURISDICTION AND VENUE

6. This civil action for patent infringement arises under the patent laws of the United States, including 35 U.S.C. § 271, and alleges infringement of the ‘952 and ‘767 Patents.

7. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

8. This Court has personal jurisdiction over Mylan at least because, upon information and belief, Mylan is incorporated in West Virginia; has its principal place of business in Morgantown, West Virginia; regularly does or solicits business in West Virginia;

engages in other persistent courses of conduct in West Virginia; and/or derives substantial revenue from services or things used or consumed in West Virginia; thereby demonstrating that Mylan has continuous and systematic contacts with West Virginia, and within this judicial district.

9. This Court has personal jurisdiction over Mylan at least because, upon information and belief, Mylan is the current owner of Abbreviated New Drug Application (ANDA) No. 220273 (“Mylan’s ANDA”) and is seeking final approval of that ANDA to engage in the commercial use, sale, and/or distribution of cyclophosphamide solution for intravenous injection, 500 mg/2.5 mL, 1 mg/5 mL (200 mg/mL), and 2 g/10 mL (200 mg/mL) (“Mylan’s ANDA Product” or “ANDA Product”), throughout the United States, including in West Virginia and within this judicial district, before the expiration of the ‘952 and ‘767 patents.

10. This Court has personal jurisdiction over Mylan at least because, upon information and belief, if Mylan’s ANDA receives final approval, Mylan’s ANDA Product will be manufactured, sold, distributed, and/or used by Mylan in West Virginia and within this judicial district; prescribed by physicians practicing in West Virginia and within this judicial district; and/or administered to patients in West Virginia and within this judicial district.

11. This Court has personal jurisdiction over Mylan at least because Mylan has committed, or aided, abetted, contributed to, and/or participated in the commission of, acts of patent infringement under 35 U.S.C. § 271(e)(2) that will lead to foreseeable harm and injury to Plaintiff, which manufactures Cyclophosphamide Injection for sale and use throughout the United States, including within this judicial district. On information and belief and as indicated by a letter dated February 19, 2026, sent by Mylan Pharmaceuticals, Inc. to Ingenus Pharmaceuticals LLC and Dr. Reddy’s Laboratories, Inc. pursuant to 21 U.S.C. §

355(j)(2)(B)(ii) (hereinafter, the “Notice Letter”), ANDA No. 220273 was prepared and filed with the intention of seeking to market the ANDA Product nationwide, including within this judicial district.

12. On information and belief, Defendant plans to sell its ANDA Product in the State of West Virginia and within this judicial district, list the ANDA Product on the State of West Virginia’ prescription drug formulary, and seek Medicaid reimbursements for sales of the ANDA Product in the State of West Virginia, either directly or through one or more of their wholly owned subsidiaries, agents, and/or alter egos.

13. On information and belief, Defendant intends that its proposed ANDA Product will be distributed and sold in West Virginia and within this judicial district and will thereby displace sales of Plaintiff’s Cyclophosphamide Injection, causing injury to Ingenus. Defendant intends to take advantage of its established channels of distribution in West Virginia for the sale of its proposed ANDA Product.

14. Mylan regularly engages in patent litigation concerning FDA-approved drug products in this judicial district, has not contested personal jurisdiction in such litigation in this judicial district, and has purposefully availed itself of the rights and benefits of this Court by asserting claims and/or counterclaims in this Court. Examples include *Regeneron Pharmaceuticals, Inc. v. Mylan Pharmaceuticals, Inc.*, No. 1:22-cv-00061-TSK-JPM (2022) and *Bausch Health Ireland Limited v. Mylan Pharmaceuticals, Inc.*, No. 1:22-cv-00020-TSK (2022).

15. Venue is proper in this district pursuant to 28 U.S.C. § 1400(b) because, *inter alia*, Mylan is a corporation organized and existing under the laws of the State of West Virginia and is subject to personal jurisdiction in this judicial district. Mylan Inc. is registered to do business in West Virginia, with Organization ID No. 230499.

16. Venue is proper in this district under 28 U.S.C. §§ 1391(b), (c) and (d), and 1400(b) because, *inter alia*, Mylan Inc. is resident in this judicial district, is subject to personal jurisdiction in this judicial district, has previously consented to venue in this judicial district, see, e.g., Nos. 1:22-cv-00061-TSK-JPM (2022) and 1:22-cv-00020-TSK (2022), and, on information and belief, will consent to venue for the purpose of this case.

PLAINTIFF’S APPROVED DRUG PRODUCT AND U.S. PATENTS

17. By Agreement of June 11, 2024, Dr. Reddy’s Laboratories, Inc. (“DRL”) has become the owner of New Drug Application (NDA) No. 212501, which was approved by the Food and Drug Administration (“FDA”) for the sale and manufacture of Cyclophosphamide solution for intravenous use (“NDA Product”). The active ingredient in the Cyclophosphamide NDA Product is cyclophosphamide. The FDA approved NDA No. 212501 on July 30, 2020.

18. NDA No. 212501 is directed to Cyclophosphamide 200 mg/mL (500 mg/ 2.5 mL and 1 g/ 5 mL) in a multiple-dose vial. A supplemental dosage form 200 mg/mL (2 g/ 10 ml) was approved November 19, 2021, under New Drug Application No. N212501.

19. Plaintiff’s Cyclophosphamide NDA Product is an injectable solution indicated for the treatment of malignant diseases such malignant lymphomas (Hodgkin’s disease, lymphocytic lymphoma, mixed-cell type lymphoma, histiocytic lymphoma, Burkitt’s lymphoma); multiple myeloma, leukemias (chronic lymphocytic leukemia, chronic granulocytic leukemia, acute myelogenous and monocytic leukemia, acute lymphoblastic (stem-cell) leukemia); mycosis fungoides, neuroblastoma, adenocarcinoma of the ovary, retinoblastoma, and breast carcinoma.

20. Plaintiff’s Cyclophosphamide NDA Product’s recommended dosage is 40 mg per kg to 50 mg per kg in divided doses over 2 to 5 days.

21. The '952 Patent, entitled "Stable Ready to Use Cyclophosphamide Liquid Formulations," was issued by the U.S. Patent and Trademark Office on May 4, 2021.

22. Ingenus is the owner and assignee of the '952 Patent, based on an Assignment of all right, title and interest by Assignor Leiutis Pharmaceuticals LLP of July 4, 2024, recorded at the U.S. Patent and Trademark Office on July 9, 2024, at Reel/Frame No. 067935/0049. Prior to the Assignment by Leiutis, Ingenus and Leiutis were co-assignees of the '952 Patent.

23. The '767 Patent, entitled "Stable Ready to Use Cyclophosphamide Liquid Formulations," was issued by the U.S. Patent and Trademark Office on June 17, 2025.

24. Ingenus is the owner and assignee of the '767 Patent, based on an Assignment of all right, title and interest by Assignor Leiutis Pharmaceuticals LLP of July 1, 2024, recorded at the U.S. Patent and Trademark Office on July 3, 2024, at Reel/Frame No. 67907/0637. Prior to the Assignment by Leiutis, Ingenus and Leiutis were co-assignees of the '952 Patent.

25. Pursuant to 21 U.S.C. § 355(b)(1), the '952 and '767 Patents were submitted to FDA with NDA No. 212501 and subsequently listed in the Approved Drug Products with Therapeutic Equivalence Evaluations (an FDA publication commonly known as the "Orange Book") for Cyclophosphamide Injection.

26. The '952 Patent has previously been asserted in *Ingenus Pharms., LLC v. Nexus Pharms., Inc.*, Civ. No. 1:22-cv-02868 (N.D. Ill. 2022), *Ingenus Pharmaceuticals, LLC et al. v. Accord Healthcare, Inc.*, Case No. 23-cv-00377 (D. Del. 2023), *Ingenus Pharms., LLC v Hetero USA, Inc., et al*, Case No. 24-1025-JLH (D. Del. 2024), *Ingenus Pharmaceuticals, LLC et al. v. Nevakar Injectables, Inc. and Endo Ventures Ltd.*, Case No. 3:22-cv-07603 (D.N.J. 2022), *In re Third Party Subpoenas Ad Testificandum, et al v. Nexus*

Pharmaceuticals, Inc., Case No. 1:23-cv-02871(N.D. Il. 2023) and *In re Third Party Subpoenas Ad Testificandum, et al v. Nexus Pharmaceuticals, Inc.*, and Miscellaneous Action No.1:23-mc-00008-CKK-GMH (D.D.C. 2023).

27. In May 2025, the District Court for the Northern District of Illinois in *Ingenus Pharms., LLC v. Nexus Pharms., Inc.*, Civ. No. 1:22-cv-02868, ruled on summary judgment that the ‘952 claims were invalid under 35 U.S.C. §112 as indefinite, and entered final judgment. *Ingenus Pharms., LLC v. Nexus Pharms., Inc.*, No. 22-02868, 2025 WL 1359357 (N.D. Ill. May 9, 2025). That case is on appeal to The Federal Circuit and awaits oral hearing. *Ingenus Pharmaceuticals, LLC v. Nexus Pharmaceuticals*, Case No. 2025-1840 (Fed. Cir. 2025).

28. In view of the statutory deadline, Plaintiff provisionally asserts the ‘952 patent in this action under 21 U.S.C § 355(j)(5)(B)(iii) pending a reversal by the Federal Circuit in *Ingenus Pharmaceuticals, LLC v. Nexus Pharmaceuticals*, Case No. 2025-1840 (Fed. Cir. 2025), or in a subsequent proceeding, based on a determination that the ‘952 patent is not invalid under 35 U.S.C. § 112. Plaintiff is amenable to a stay of this action pending final resolution to the *Nexus* appeal from which no further appeal can be taken.

DEFENDANT’S ANDA NO. 220273

29. On information and belief, Defendant has submitted ANDA No. 220273 to FDA, or caused ANDA No. 220273 to be submitted to FDA, under 21 U.S.C. § 355(j), in order to obtain approval to engage in the commercial manufacture, use, or sale of cyclophosphamide injection as purported generic versions of Plaintiff’s NDA Product prior to the expiration of the ‘952 and ‘767 Patents.

30. On information and belief, FDA has not approved Defendant’s ANDA.

31. On information and belief, Mylan sent Ingenus and Dr. Reddy's a Notice Letter dated February 19, 2025. The Notice Letter represents that Mylan had submitted to FDA ANDA No. 220273 and a purported Paragraph IV certification for the '952 and '767 Patents. Plaintiff reserves all rights to challenge the sufficiency of Defendant's ANDA and Notice Letter.

32. On information and belief, the purpose of an ANDA and Paragraph IV certification is to obtain approval under section 505(j) of the FDCA to engage in the commercial manufacture and sale of the ANDA Product before expiration of the '952 and '767 Patents. Hence, Defendant's purpose in submitting ANDA No. 220273 is to market the ANDA product described therein before the expiration of the '952 and '767 Patents.

33. On information and belief, if approved, the ANDA Product will have the same indication as Plaintiff's Cyclophosphamide NDA Product. On further information and belief, the indication set forth in the proposed labeling submitted in ANDA No. 220273 for the ANDA Product is the treatment of malignant diseases as described in Plaintiff's NDA.

34. On information and belief, if FDA approves Defendant's ANDA, Defendant will manufacture, offer for sale, or sell the ANDA Product, within the United States, including within the State of West Virginia and this judicial district, or will import the ANDA Product into the United States, including into the State of West Virginia and this judicial district.

35. On information and belief, if FDA approves Defendant's ANDA, Defendant will actively induce or contribute to the manufacture, use, offer for sale, or sale of the ANDA Product in a manner that infringes the '952 Patent.

36. This action is being brought within forty-five days of Plaintiff's receipt of the Notice Letter, pursuant to 21 U.S.C. § 355(c)(3)(C). Accordingly, Plaintiff is entitled to a stay of FDA approval pursuant to 21 U.S.C. § 355(j)(5)(B)(iii) and U.S.C. § 355(j)(5)(F)(ii).

FIRST COUNT

(Mylan's Infringement of the '952 Patent)

37. Plaintiff repeats and re-alleges each of the foregoing paragraphs 1-36 as fully set forth therein.

38. Upon information and belief, Mylan submitted or caused the submission of ANDA No. 220273 to FDA, seeking FDA approval of Defendant's ANDA before the expiration date of the '952 Patent.

39. Under 35 U.S.C. § 271(e)(2)(A), Mylan's submission of Mylan's ANDA with a Paragraph IV certification to the '952 patent for the purpose of obtaining approval to engage in the commercial manufacture, use, or sale of Mylan's ANDA Product before the expiration of the '952 patent is itself an act of infringement of the '952 patent.

40. In the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding, on information and belief, Mylan's ANDA Product will, if approved, infringe one or more claims of the '952 Patent.

41. In the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding, the importation, manufacture, sale, offer for sale, or use of the ANDA Product within the United States will, if approved by the FDA, infringe, either literally or under the doctrine of equivalents, one or more claims of the '952 Patent under 35 U.S.C. § 271(a).

42. In the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding, Mylan will actively induce infringement of the '952

Patent under 35 U.S.C. § 271(b) upon FDA approval unless enjoined by this Court. On information and belief, upon FDA approval of Mylan's ANDA, Mylan will make, use, offer to sell, or sell the ANDA Product within the United States, or will import the ANDA Product into the United States, and will thereby induce infringement of one or more claims of the '952 Patent. In the event the '952 Patent is found not invalid, on information and belief, Mylan will, upon FDA approval, intentionally encourage acts of direct infringement with knowledge of the '952 Patent and knowledge that its acts are encouraging infringement.

43. In the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding, Mylan will, upon FDA approval, contributorily infringe the '952 Patent under 35 U.S.C. § 271(c), unless enjoined by this Court. On information and belief, upon FDA approval of Mylan's ANDA, Mylan will offer to sell or sell the ANDA Product within the United States, or will import the ANDA Product into the United States, and will thereby contribute to the infringement of one or more claims of the '952 Patent. On information and belief, Mylan has had and continues to have knowledge of the '952 Patent and knowledge that its acts will lead to infringement of the patent. On information and belief, Mylan has had and continues to have knowledge that the ANDA Product is especially made or especially adapted for a use that infringes the '952 Patent, and that there are no substantial noninfringing uses for the ANDA Product.

44. Mylan had actual and constructive notice of the '952 Patent prior to filing Mylan's ANDA, and was aware that the filing of Mylan's ANDA with the request for FDA approval prior to the expiration of the '952 Patent would constitute an act of infringement of the '952 Patent. Mylan has no reasonable basis for asserting that the commercial manufacture, use, offer for sale, or sale of the ANDA Product will not infringe, contribute to

the infringement of, and/or induce the infringement of the '952 Patent, in the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding,

45. Mylan filed its ANDA without adequate justification for asserting the '952 Patent to be not infringed by the commercial manufacture, use, offer for sale, or sale of the ANDA Product. Mylan's conduct in certifying noninfringement with respect to the '952 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285, and entitles Plaintiff to recovery of its attorneys' fees and such other relief as this Court deems proper.

46. In the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding, Plaintiff will be irreparably harmed if Mylan is not enjoined from infringing, and from actively inducing or contributing to the infringement of, the '952 Patent. Plaintiff does not have an adequate remedy at law, and considering the balance of hardships between Plaintiff and Mylan, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction

SECOND COUNT

(Mylan's Infringement of the '767 Patent)

47. Plaintiff repeats and re-alleges each of the foregoing paragraphs 1-46 as fully set forth therein.

48. Upon information and belief, Mylan submitted or caused the submission of ANDA No. 220273 to FDA, seeking FDA approval of Defendant's ANDA before the expiration date of the '767 Patent.

49. Under 35 U.S.C. § 271(e)(2)(A), Mylan's submission of Mylan's ANDA with a Paragraph IV certification to the '767 patent for the purpose of obtaining approval to engage in the commercial manufacture, use, or sale of Mylan's ANDA Product before the expiration of the '767 patent is itself an act of infringement of the '767 patent.

50. On information and belief, Mylan's ANDA Product will, if approved, infringe one or more claims of the '767 Patent.

51. On information and belief, the importation, manufacture, sale, offer for sale, or use of the ANDA Product within the United States will, if approved by the FDA, infringe, either literally or under the doctrine of equivalents, one or more claims of the '767 Patent under 35 U.S.C. § 271(a).

52. On information and belief, Mylan will actively induce infringement of the '767 Patent under 35 U.S.C. § 271(b) upon FDA approval unless enjoined by this Court. On information and belief, upon FDA approval of Mylan's ANDA, Mylan will make, use, offer to sell, or sell the ANDA Product within the United States, or will import the ANDA Product into the United States, and will thereby induce infringement of one or more claims of the '767 Patent. On information and belief, Mylan will, upon FDA approval, intentionally encourage acts of direct infringement with knowledge of the '767 Patent and knowledge that its acts are encouraging infringement.

53. On information and belief, Mylan will, upon FDA approval, contributorily infringe the '767 Patent under 35 U.S.C. § 271(c), unless enjoined by this Court. On information and belief, upon FDA approval of Mylan's ANDA, Mylan will offer to sell or sell the ANDA Product within the United States, or will import the ANDA Product into the United States, and will thereby contribute to the infringement of one or more claims of the '767 Patent. On information and belief, Mylan has had and continues to have knowledge of the '767 Patent and knowledge that its acts will lead to infringement of the patent. On information and belief, Mylan has had and continues to have knowledge that the ANDA Product is especially made or especially adapted for a use that infringes the '767 Patent, and that there are no substantial noninfringing uses for the ANDA Product.

54. Mylan had actual and constructive notice of the '767 Patent prior to filing Mylan's ANDA, and was aware that the filing of Mylan's ANDA with the request for FDA approval prior to the expiration of the '767 Patent would constitute an act of infringement of the '767 Patent. Mylan has no reasonable basis for asserting that the commercial manufacture, use, offer for sale, or sale of the ANDA Product will not infringe, contribute to the infringement of, and/or induce the infringement of the '767 Patent, in the event the '767 Patent is found not invalid.

55. Mylan filed its ANDA without adequate justification for asserting the '767 Patent to be invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the ANDA Product. Mylan's conduct in certifying invalidity, unenforceability, and/or noninfringement with respect to the '767 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285, and entitles Plaintiff to recovery of its attorneys' fees and such other relief as this Court deems proper.

56. Plaintiff will be irreparably harmed if Mylan is not enjoined from infringing, and from actively inducing or contributing to the infringement of, the '767 Patent. Plaintiff does not have an adequate remedy at law, and considering the balance of hardships between Plaintiff and Mylan, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests the following relief:

A. A judgment that Mylan has infringed the '952 Patent under 35 U.S.C. § 271(e)(2)(A), in the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding;

B. A judgment that Mylan has infringed the '767 Patent under 35 U.S.C. §

271(e)(2)(A);

C. An order, pursuant to 35 U.S.C. § 271(e)(4)(A), that the effective date of any FDA approval of Mylan's ANDA shall be no earlier than the last expiration date of the '767 Patent, or any later expiration of exclusivity for the '952 Patent, including any extensions or regulatory exclusivities;

D. Entry of a permanent injunction enjoining Mylan, its officers, agents, employees, parents, affiliates, and subsidiaries, and all persons and entities acting in concert with Mylan's or on their behalf from commercially manufacturing, using, offering for sale, or selling the ANDA Products within the United States, or importing the ANDA Products into the United States, until the expiration of the '767 and '952 Patents, in the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding;

E. A judgment that making, using, selling, offering to sell, or importing the ANDA Product, or inducing or contributing to such conduct, would constitute infringement of the '767 and '952 Patents pursuant to 35 U.S.C. § 271 (a), (b), and/or (c), in the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding;

F. A declaration under 28 U.S.C. § 2201 that if Mylan, its officers, agents, employees, parents, affiliates, and subsidiaries, and all persons and entities acting in concert with Mylan or on its behalf, engage in the commercial manufacture, use, offer for sale, sale or importation of the ANDA Product, it will constitute an act of infringement of the '767 and '952 Patents pursuant to 35 U.S.C. § 271 (a), (b), and/or (c), in the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding;

G. An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if Mylan engages in the commercial manufacture, use, offer for sale, sale, and/or importation of the ANDA Product, or any product that infringes the '767 or '952 Patents, or induces or

contributes to such conduct, prior to the expiration of the '767 or '952 Patents, in the event the '952 Patent is found not invalid as a result of the *Nexus* appeal or any subsequent proceeding;

H. An order staying Mylan's ANDA for a 30-month time period referred to within 21 U.S.C. § 355(j)(5)(B)(iii);

I. A finding that this is an exceptional case, and an award of attorneys' fees and costs to Plaintiff in this action pursuant to 35 U.S.C. § 285; and

J. Such other and further relief as the Court deems just and proper.

Dated: April 10, 2026

Respectfully submitted,

By: /s/ Jeffrey A. Kimble

Richard W. Gallagher
Jeffrey A. Kimble
Robinson & McElwee PLLC
Post Office Box 128
140 West Main Street, Suite 300
Clarksburg, West Virginia 26302-0128
Telephone: (304) 326-5314

Of Counsel:
Michael Dzwonczyk
mdzwonczyk@sughrue.com
Pro Hac Vice Application Forthcoming

SUGHRUE MION PLLC
2000 Pennsylvania Ave., N.W.
Suite 900
Washington, D.C. 20006
Telephone: (202) 293-7060
Facsimile: (202) 293-7860

*Attorneys for Plaintiff,
Ingenus Pharmaceuticals, LLC*